

קפה בַּחוּץ

Coffee Out — Marit Ayin & the Non-Kosher Café

Black coffee at a highway rest stop, a latte at a non-kosher café, a cup at a neighbor's house: where kashrut ends and marit ayin, chashad, and simple neighborliness begin.

THE QUESTIONS ON THE TABLE השאלות

1 May one purchase hot coffee at a non-kosher establishment while traveling (at a rest stop, gas station, airport, etc.)?

Yes — while traveling, one may purchase unflavored regular or decaf coffee (and a latte with cholov stam if one does not keep cholov Yisroel) at...

2 Does unflavored roasted coffee (whole bean or ground) require a hechsher?

No — unflavored roasted coffee beans, whole and ground, are considered kosher without a hechsher (kosher certification).

3 May one purchase hot coffee at a non-kosher establishment (e.g. Starbucks) under normal circumstances?

STAR-K position: No — under normal (lechatchila) circumstances, one should only buy hot coffee from vendors known not to sell treif, or whose...

4 Is there a marit ayin concern for buying coffee at a non-kosher establishment like McDonald's while traveling?

Rav Schachter: No marit ayin issue. Rav Belsky: Permitted but do not sit at the restaurant tables — sit outside or at a neutral location.

5 Is there a concern of maris ayin when purchasing coffee at a non-kosher establishment such as McDonald's or a highway rest stop?

Rabbi Schachter ruled that there is no concern of maris ayin for purchasing coffee at McDonald's or a similar rest stop.

6 May one drink coffee socially at a non-Jew's home? What about at a non-Jewish coffee shop or store?

One may not drink coffee socially at a non-Jew's home (Rabbi Belsky, citing Chachmas Adam). However, there is no issue of drinking coffee in a store.

7 Is coffee permitted when served from carafes or utensils that may have been washed together with non-kosher dishes?

While halachic justifications exist to permit such coffee, Rav Belsky held that it is not within the spirit of the law to rely on these heteirim.

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Shulchan Aruch YD 122:6 (stam keilim)

Rabbi Yosef Karo (Maran / Beit Yosef / Shulchan Aruch), 1488–1575

Ordinary [non-Jewish] utensils are assumed not to have been used [for non-kosher food] within the past day (stam keilim einan bnei yoman) — if one mistakenly cooked in a non-Jew's pot, the food is permitted, since we assume the pot was not used for non-kosher within 24 hours, rendering any absorbed taste pagum (off-tasting) and halachically inert.

סתם כלים אינן בני יומן — if one mistakenly cooked in a non-Jew's pot, the food is permitted, since we assume the pot was not used for non-kosher within 24 hours.

Chochmas Adam 66:14 ↗

Rabbi Avraham Danzig (*Chayei Adam* / *Chochmas Adam*), 1748–1820

Rules that beer may not be drunk socially at a non-Jew's home because of the decree against socializing (chatnut), then adds: "and likewise coffee and chocolate are permitted to drink in the house of a non-Jew (Pri Chadash)" — but immediately warns that "in our many sins, in these times many failures come from this, especially drinking coffee with milk which is an outright prohibition..."

WORTH ARGUING ABOUT צריך עיון

- The coffee itself is usually the easy part — the real questions are the cup it's served in, the machine it ran through, and what onlookers conclude when they see you inside.
- Marit ayin has limits: once a practice is common enough that observers assume the permitted explanation, the concern can fall away. Does everyone buying black coffee at McDonald's reach that bar?
- Distinguish halacha from policy: several modern authorities permit the cup but still counsel against the setting.



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